

PERFORMANCE WORK STATEMENT (PWS)

FOR

JAPAN-WIDE CHARTERED BUS SERVICES

Apr 2026

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1. DESCRIPTION OF SERVICES/GENERAL INFORMATION.

The Contractor shall coordinate charter bus services through licensed Japanese bus operations. The Contractor does not own or directly operate buses but must maintain sufficient nationwide subcontracting capability to fulfill Government requirements to perform chartered bus services for movement of personnel including service members and authorized U.S. Government personnel carrying weapons and bags, when, as and if scheduled by the Government representative at any time during any Calendar Day. The Contractor must be duly authorized to operate and perform services required in the Performance Work Statement (PWS) in accordance with (IAW) the terms and conditions under this contract and applicable Government of Japan (GOJ) laws and trade practices. The pricing for chartered bus services under this contract is based on the nationwide charter bus fare system publicly established by the Ministry of Land, Infrastructure, Transport, and Tourism (MLIT). While the contract price is fixed at the time the Contractor submits its quote and is not subject to revision due to changes in social or economic conditions such as fluctuations in fuel costs, the MLIT-published fare standards serve as the official benchmark for charter bus services in Japan. Accordingly, if MLIT revises its publicly announced fare standards, the contract price may be adjusted, subject to the Contracting Officer (CO) (refer to paragraph 1.5.5.1.1.) approval.

1.1. AREA OF PERFORMANCE.

The Contractor shall furnish buses to transport passengers all over Japan to meet the transportation requirements. The common routes for the Boarding and Off-boarding points are as follows:

U.S. installations (Honshu)
Misawa Air Base / Yokota Air Base / Camp Zama / Sagami General Depot / Yokohama North Dock / USN Air Facility, Atsugi / U.S. Fleet Activities, Yokosuka / CATC, Camp Fuji / Kyogamisaki Communication Site (KCS) / Kure Pier No.6 / Kawakami Ammunition Depot / USMC Air Station, Iwakuni / U.S. Fleet Activities, Sasebo
U.S. installations (Okinawa)
Kadena Air Base / Camp Gonsalves / Camp Schwab / Camp Hansen / Naval Station White Beach / Camp Courtney / Torii Station / Camp Foster / Marine Corps Air Station Futenma / Camp Kinser / Naha Military Port
Common Boarding and Off-Boarding Points
U.S. installations / AMC Terminals (Yokota, Fukuoka, Kadena) / JGSDF / JASDF / Commercial Airports / Stations / Hotels / NGL Shimazu Apartment / RPK Kurobe Apartment

*The Exhibit Line Item Numbers (ELINs) X010 and X020 in the Exhibit (price list) represent the following areas:

District Transportation Bureaus	Prefectures
Hokkaido District Transportation Bureau	Hokkaido
Tohoku District Transportation Bureau	Aomori, Iwate, Miyagi, Fukushima, Akita, Yamagata
Kanto District Transportation Bureau	Ibaraki, Tochigi, Gunma, Saitama, Chiba, Tokyo, Kanagawa, Yamanashi
Hokurikushinetsu District Transportation Bureau	Niigata, Nagano, Toyama, Ishikawa
Chubu District Transportation Bureau	Shizuoka, Aichi, Gifu, Mie, Fukui
Kinki District Transportation Bureau	Shiga, Kyoto, Osaka, Hyogo, Nara, Wakayama
Chugoku District Transportation Bureau	Tottori, Shimane, Okayama, Hiroshima, Yamaguchi
Shikoku District Transportation Bureau	Tokushima, Kagawa, Ehime, Kochi
Kyushu District Transportation Bureau	Fukuoka, Saga, Nagasaki, Kumamoto, Oita, Miyazaki, Kagoshima
Okinawa District Transportation Bureau	Okinawa

*Note: Under this contract, ELINs are structured by ordering period. The first letter of the ELIN number indicates the ordering period (e.g., Period 1 = A series, Period 2 = B series, Period 3 = C series, etc.). Only this letter changes; the ELIN number and its associated description remain consistent throughout ordering periods. For simplicity, this PWS uses “X” to represent that letter.

1.2. TYPE AND CAPACITY OF BUSES.

1.2.1. LARGE-SIZED BUSES.

Tour-type buses that either have a minimum seating capacity of 45 passengers (excluding auxiliary seats/folding seats), or 9 meters or more in length (excluding a medium-sized bus). If a large-sized bus is not available in the vicinity, the Ordering Officer (OO) (refer to paragraph 1.5.5.1.2.) or the CO, through consultation, may authorize the Contractor to arrange for a small or medium-sized bus.

1.2.2. MEDIUM-SIZED BUSES.

Medium-sized buses are other than large or small IAW the vehicle classification announced by MLIT. If a medium-sized bus is not available in the vicinity, the OO, or the CO, through consultation, may authorize the Contractor to arrange for a small or large-sized bus.

1.3. SAFETY AND ENVIRONMENTAL COMPLIANCE.

1.3.1. PASSENGER SAFETY.

The Contractor shall be responsible for the safety of the passengers on board. A “Safety Bus” – defined as a chartered bus certified under the Japan Bus Association’s safety evaluation system (or an equivalent service that meets similar safety standards) – shall be furnished to ensure safe and secure commercial bus transportation for DoD personnel. In emergencies, buses must continue to comply with all prescribed standards to the extent that circumstances permit.

1.3.2. COMPLIANCE WITH ENVIRONMENTAL STANDARDS AND EMISSION REGULATIONS.

The Contractor shall ensure that all vehicles provided under this contract comply with all applicable GOJ emission regulations and local ordinances, including diesel vehicle emission control ordinances established by prefectural governments. The U.S. Government shall not be held liable for any fines, delays, or damage resulting from the operation of vehicles that do not meet these environmental standards.

1.4. OPERATIONAL REQUIREMENTS.

As used throughout this contract, the following terms shall have the meaning set forth below:

1.4.1. OPERATIONAL DEFINITIONS.

1.4.1.1. Boarding Point.

A place designated as a point where passengers board the bus.

1.4.1.2. Off-boarding Point.

A place designated as a point where passengers disembark.

1.4.1.3. Business Day.

Days on which the U.S. Government is open for regular business operations, Monday through Friday excluding U.S. holidays specified in paragraph 1.5.7 below, are considered “Business Days.” Japanese national holidays are treated as Business Days unless otherwise specified.

1.4.1.4. Calendar Day.

Any day of the year, including Saturdays, Sundays, U.S. holidays, and Japanese national holidays, regardless of whether the Government is open for business, is considered a "Calendar Day."

1.4.2. ORDERING AND FARE.

The Contractor shall perform the service as scheduled by the OO/CO at any time during any Calendar Day. At the time of schedule finalization, the OO shall provide the Contractor with all information required for the Order Form, including the number of buses, the total number of passengers, the date and time of performance, and the Boarding and Off-boarding points (refer to paragraph 1.4.2.9.). Based on this information, the Contractor shall select an appropriate bus company and obtain a Transportation Acceptance Agreement (Unsou-Hikiuke-Sho) from the selected company. The Contractor shall complete the Order Form using the information in the agreement, including travel distance, time, and any other required details, and return it to the OO. Any anticipated additional costs, including accessorial services, shall also be identified in the Order Form. Upon completion of all bus services under the Order Form, the OO shall sign the Order Form as notice of completion and return it to the Contractor. Based on the signed Order Form, the Contractor shall prepare and submit the Order Completion Report, required for payment, to the Contracting Officer Representative (COR) (refer to paragraph 1.5.5.1.3.)/CO for approval.

1.4.2.1. Advance Notification.

Service Requests must be placed by 16:30 hours and any service requests placed after 16:30 hours shall be treated as service requests received on the next Business Day. The Government may also place service requests on U.S. holidays in case of urgent needs. The service request will be placed for services to the Contractor prior to the time frame set forth below:

The Number of Buses for Each Service Request	Advance Notification By the End of the Day (16:30 hours)
Up through 2 buses	At least 3 Business Days
3 buses	At least 4 Business Days
4 buses	At least 5 Business Days
5 buses	At least 6 Business Days
6 buses	At least 7 Business Days
7 buses	At least 8 Business Days
8 buses	At least 9 Business Days
Over 9 buses	At least 10 Business Days

1.4.2.2. Distance-Based Fare and Hourly Rate.

The total price for each charter bus requirement shall be calculated as the sum of Distance-based fares and hourly rates. The estimated time and distance for the requirement shall be calculated by the Contractor and agreed to by the OOs, and the scheduling requests shall be issued based on the mutually agreed estimates and within the scope of the contract or Task Order(s) (TO) issued by the CO. If any ambiguity exists, the OOs shall consult with the CO before reaching an agreement.

All distance-based fares and hourly rates shall include all costs necessary for performance under this contract, including, but not limited to, bus company costs, Contractor arrangement fees and personnel costs. Personnel costs include, but are not limited to, 24-hour on-call support, coordination with the OOs/Government Representatives (GR) (refer to paragraph 1.5.5.1.4.) via verbal or email communication, English-language correspondence, coordination with the bus companies, documentation, payment processing, as required by this PWS.

1.4.2.3. Rate Calculation.

Distance-based fares and hourly rates specified in the ELIN X01A through X01K, and ELIN X02A through X02K in the Exhibit are to be used for large-sized buses. Calculation method will be based on the applicable chartered bus regulation, fare/pricing system announced by regional District Transport Bureau. Distance-based and hourly rates for medium-sized buses specified in the ELIN X01L and X02L in the Exhibit are to be used for KCS under the Kinki District Transport Bureau. When Boarding and Off-boarding points are located under different Regional Transport Bureau jurisdictions, the Contractor shall select the option as the lowest total estimated cost to the Government. The total estimated cost includes the base charter rate plus any applicable costs such as deadhead mileage. The selection priority shall be as follows:

(a) The Contractor shall first seek a bus company based in the jurisdiction of the Boarding point to minimize deadhead costs.

(b) If a company based in another jurisdiction can provide the service at a demonstrably lower total estimated cost (including all deadhead costs), the Contractor may select that option.

In computing payment of actual working hours, time worked thirty (30) minutes or less shall be disregarded, and any fraction of actual working time exceeding thirty (30) minutes up through one (1) hour shall be counted as one (1) hour.

Verification of Operating Data:

The Government reserves the right to verify the actual operating distance and time. Upon request by the CO, the Contractor shall promptly provide the objective operational records, including but not limited to, the Transportation Acceptance Agreement, tachograph (tachometer) records, daily driving reports (Unten-Nippo), or GPS tracking logs for the specific bus(es) used for the service. Failure to provide such records upon request may result in the suspension of payment for the disputed portion of the invoice until the operating data is verified.

1.4.2.3.1. Consolidated Calculation for Multiple Buses.

When multiple buses from the same bus company and the same depot operate the same route under a single scheduling service request, the distance and time calculations may be consolidated into a standard calculation for one (1) bus. This does not apply to round-robin operations or staggered departures. The Government may require the Contractor to submit tachometer records from each bus to verify the consolidated calculation.

Allowable Deviation in Tachometer Readings between Buses:

- For routes 500 km or less: Within 30 km and 1 hour
- For routes 501 km or more: Within 50 km and 2 hours

1.4.2.4. Bus Arrangement.

The bus prices will be calculated by adding distance-based fares and hourly rates; however, the Contractor shall furnish the most efficient and economical buses to a maximum extent in consideration of the distances between the motor pools, the Boarding and Off-boarding points.

1.4.2.5. Change of Schedules.

The Contractor's manager shall serve as the primary point of contact for all schedule changes. The Contractor shall ensure 24-hour availability to receive and respond to Government-directed changes. While the Contractor may utilize dispatchers for after-hours coordination, all communications from the Government shall be made through the Contractor, and the Contractor shall remain fully responsible for coordinating with the dispatcher and any subcontractors. OO may coordinate operational schedule changes; however, any change

resulting in a cost increase beyond the funding in the TO and requiring a contract modification must be authorized by the CO prior to execution.

The classification of schedule changes shall be determined based on the following criteria:

Classification	Condition	Handling Procedure
Standard Change	Accommodated by the original bus company, and the Government determines the changes remain within the general scope of the original request.	Treated as a change to the existing service request.
Cancellation & New Request	1) Requires a different bus company. 2) Even if accommodated by the original bus company, the Government determines, at its sole discretion, that the changes significantly alter the original scope.	Treated as a cancellation. The Government shall cancel the existing schedule request, necessitating the Contractor to cancel the corresponding Transportation Acceptance Agreement and to issue a new agreement. The date of Government notification shall be the cancellation date. A new service request shall be issued per paragraph 1.4.2.1.

Changes or cancellations must be documented by both the Government and the Contractor, as this documentation assists in resolving billing problems and provides a detailed record in the event of a bus company's protest. Documentation of schedule changes shall be sent and recorded through emails or Order Forms, as appropriate. For details on any fees related to changes, refer to paragraph 1.4.4.2.

1.4.2.6. Bus Non-Availability Handling Procedures.

If the Contractor is unable to arrange buses despite the Government meeting the required advance notification period, the Contractor shall not declare non-availability prior to completing reasonable efforts to secure buses. Such efforts shall include, at a minimum, contacting multiple bus companies within the primary area, extending the search to reachable areas, and confirming whether different bus sizes can be substituted. The Contractor shall maintain a log with sufficient detail to demonstrate these efforts. The Contractor shall retain this log and make it available to the Government upon request. The Government reserves the right to verify the information provided in the log. This log shall include, at a minimum, the following:

(a) Date and Time of Inquiry: The specific date and time the bus company was contacted or the search was performed.

(b) Number of Companies Contacted: The count and the name of bus companies that were contacted.

(c) Search Area: Whether the search was conducted within the primary area or extended to reachable areas.

(d) Inquiry for Alternatives: Whether the availability of substitutable bus sizes was checked, and the result of that inquiry.

(e) Result: The specific reason why buses could not be secured, such as "all vehicles fully booked," "no vehicles of the requested size available," or "insufficient driver availability."

Only after all reasonable efforts have been exhausted may the Contractor submit a

Nonavailability Letter, which shall become valid only upon approval by the Government. Upon approval of the Nonavailability Letter, the Government may take appropriate actions IAW the performance thresholds specified in paragraph 2, including requiring corrective actions or reflecting the incident in the Contractor Performance Assessment Reporting System (CPARS), as applicable.

1.4.2.7. Types of Task Orders.

When a requirement arises, the CO shall issue a TO. The following TO types are typically used under this contract.

1.4.2.7.1. Blanket Task Order.

Under a Blanket TO, the Contractor shall provide charter bus services as scheduled by the OO throughout the TO performance period. The Government may issue a Blanket TO with minimal initial funding and incrementally fund the TO as needed. The Contractor shall perform all transportation requirements coordinated by the OO without the need for separate TO issuance for each service. Upon completion of each service, the Contractor shall submit an Order Completion Report to the COR/CO through the OO for verification. After verification, the Contractor shall submit an invoice through the Wide Area Workflow (WAWF). Any unused funds shall be deobligated by the Government.

1.4.2.7.2. Undefined Task Order.

Under an Undefined TO, the Contractor shall provide charter bus services based on service requests finalized by the OO as details such as schedule, bus quantity, or routes are determined. The Government may obligate funds in advance to accommodate potential changes. The Contractor shall perform all services coordinated by the OO during the TO period. Upon completion of services, the Contractor shall submit an Order Completion Report to the COR/CO through the OO for verification. After verification, the Contractor shall submit an invoice through the WAWF. Any unused funds shall be deobligated by the Government.

1.4.2.7.3. Defined Task Order.

Under a Defined TO, the Contractor shall provide charter bus services IAW a fully defined PWS and a confirmed schedule. The Government will issue the TO based on fixed requirements and obligated funds. The Contractor shall perform all services as specified in the TO, coordinating with the OO as necessary. Upon completion, the Contractor shall submit an invoice to the WAWF (Order Completion Report may be exempted). Any unused funds shall be deobligated by the Government.

1.4.2.7.4. Schedule Confirmation in Absence of OO Action.

A TO constitutes a firm Government requirement upon issuance. Each TO (including a Blanket TO and an Undefined TO) shall include the earliest service date with a definite date and time, which shall be deemed confirmed upon issuance and shall govern for purposes of performance, cancellation, and all applicable changes. Any other schedule specified with a definite date and time shall not be considered confirmed unless and until finalized by the OO. Upon such finalization, those schedules shall be deemed confirmed and shall become subject to all applicable performance and cancellation charges.

Schedules identified as "TBD" (To Be Determined) shall not be considered confirmed at the time of TO issuance and shall not be subject to cancellation charges until finalized by the OO. Upon finalization, such schedules shall be deemed confirmed and shall become subject to all applicable performance and cancellation charges. Schedules identified as "TBD" shall be limited to elements that cannot reasonably be determined at the time of TO issuance. The Contractor may request clarification or justification from the OO if excessive or unnecessary use of TBD is identified.

If the OO finalizes or issues any specific Order Form that supersedes the baseline schedule, this deemed confirmation provision shall not apply, and only the schedules expressly finalized

or issued by the OO shall govern. Any subsequent Government cancellations shall be subject to the cancellation charges set forth in the Exhibits based on the governing schedule.

1.4.2.8. Transportation Acceptance Agreement (Unsou-Hikiuke-Sho).

The Contractor shall obtain a Transportation Acceptance Agreement (“Unsou-Hikiuke-Sho”) from the bus company for each bus service request. If any discrepancies, omissions, or required adjustments are identified in the Order Form submitted under paragraph 1.4.2, the Contractor shall use the Transportation Acceptance Agreement as the primary source document to reconcile and correct the information. The Government may also require the Contractor to submit the original Transportation Acceptance Agreement for verification at any time. The Contractor shall retain all Transportation Acceptance Agreements and related documentation IAW applicable record-keeping requirements.

1.4.2.9. Order Form.

The Order Form shall include, at a minimum, the following information:

- (a) Information to be Provided by the OO
 - Contract / TO number
 - Project Title
 - Performance Period
 - Name of Transportation Office and OO
 - Service Request Date
 - Tracking Number
 - Scheduled Date and Time
 - Number of buses
 - Total number of passengers
 - Boarding and Off-boarding points
- (b) Information to be Provided by the Contractor
 - Distance and Time IAW the Transportation Acceptance Agreement
 - Applicable Charges (e.g., Alternate Driver, Late Night/Early Morning, Overnight Service, Parking, Tolls, and Other Actual Costs, as applicable)

The Order Form, once signed by the OO, shall be deemed complete, and the Contractor may incorporate its contents into the Order Completion Report.

1.4.2.10. Order Completion Report.

The Contractor shall submit an Order Completion Report to the OO within two (2) weeks after completion on the applicable service. The Order Completion Report shall include, at a minimum, the following information:

- Contract / TO number
- Contractor Name
- Bus Company Name
- Tracking Number
- Date of Request
- Date of Performance
- Authorized Person Requesting (OO)
- Boarding and Off-boarding points
- Region
- Distance and Time
- Number of Buses
- Applicable Charges (e.g., Alternate Driver, Late Night/Early Morning, Overnight Service, Parking, Tolls, and Other Actual Costs, as applicable)
- Unit Price in ELIN, Quantity and Extended Amount

- Each Request Subtotal, and Total Amount of the Order Completion Report
- Signature Block for OO/COR or CO

The Contractor shall finalize all cost elements based on the information documented in the Order Form. Such information shall be verified and reconciled against the Transportation Acceptance Agreement and pre-coordinated with, and agreed upon by, the OO. If revisions are requested by the OO, the Contractor shall promptly correct and resubmit the report. Approval of the Order Completion Report by the CO or COR is a mandatory prerequisite for the Contractor to initiate invoicing through WAWF unless otherwise exempted. No invoice or payment shall be processed prior to such approval.

The Contractor shall make all necessary adjustments to reflect actual performance. Minor discrepancies that do not require a revision to the Transportation Acceptance Agreement may be accepted without adjustment. Any discrepancies exceeding such tolerance shall be properly adjusted, whether resulting in an increase or decrease in the invoiced amounts. Such adjustments shall be supported by appropriate documentation, including a revised Transportation Acceptance Agreement, and shall be subject to verification and approval by the Government prior to invoicing.

1.4.3. ADDITIONAL CHARGES.

Except for the additional charges and expenses specified in this paragraph and in paragraph 1.4.6, all costs required for the operation under this contract shall be borne by the Contractor. When a scheduled service is cancelled, such charges shall be included in the cancellation fee calculation.

1.4.3.1. Alternate Driver Charge.

The Contractor shall be entitled to the alternate driver distance-based fares and hourly rates specified in ELIN X03A and ELIN X03B in the Exhibit. These charges represent a uniform, nationwide fixed rates are not established on a regional basis. Accordingly, such rates are based on the unified prices proposed by the Contractor specifically for the Alternate Driver Charge and are not calculated from, nor derived from, the regional distance-based fares and hourly rates specified in ELIN X01A through X01L or ELIN X02A through X02L. The Alternate Driver Charge shall apply to the operating distance and operating hours calculated IAW the distance-based fares and hourly rates calculation method prescribed in paragraph 1.4.2.2., when two (2) drivers are required to ensure safe operation in compliance with applicable GOJ rules and regulations. These charges shall apply under the following conditions:

- (a) Revenue distance over 500 km;
- (b) Revenue distance over 400 km between 02:00 and 04:00 hours, or with OO/CO permission, even if the distance is less than 400 km but involves nighttime driving between 02:00 and 04:00 hours;
- (c) Driving time exceeding 9 hours, or required by the OO when extensive driving hours are expected due to heavy traffic at the time of requesting the service;
- (d) In cases not covered by (a) to (c) above, when the Contractor determines that assigning an alternate driver is necessary to ensure safe operation, the Contractor shall assign an alternate driver only after obtaining approval from the OO/CO.

1.4.3.2. Late Night and Early Morning Charge.

The Late Night and Early Morning Charge will be applicable when the services are performed within the time frames between 22:00 and 05:00 hours. The Contractor shall be entitled to the Late Night and Early Morning Charge specified in ELIN X03C when one (1) driver is assigned, and ELIN X03D when two (2) drivers are assigned. These charges represent a uniform, nationwide fixed rates are not established on a regional basis. Accordingly, these rates are based on the unified prices proposed by the Contractor specifically for the Late Night and Early

Morning Charge and are not calculated from, nor derived from, the regional distance-based fares and hourly rates specified in ELIN X01A through X01L or ELIN X02A through X02L.

1.4.3.3. Specially Equipped Buses Charge.

When the Government requires vehicles equipped with special equipment (e.g., Bus with lavatory, Lift, etc.), the Contractor shall be entitled to receive the Specially Equipped Buses Charge specified in ELIN X03E. This charge is intended to compensate the Contractor for providing vehicles equipped with features beyond the standard commercial passenger transportation configurations, including but not limited to specialized facilities and higher acquisition or operating costs. Upon request by the CO, the Contractor shall provide adequate supporting documentation to substantiate the basis of such charges.

1.4.4. ACCESSORIAL SERVICES.

The fees specified in this paragraph shall be applied on a per-bus basis. Such accessorial service fees shall be incurred at the time the Contractor selects a bus company and completes the arrangement. These fees shall be due and payable in full, separate and apart from any cancellation fees, even in the event the scheduled service is cancelled. All accessorial service fees specified under this paragraph shall be established IAW the Contractor's standard commercial practices. The Contractor may reference existing commercial pricing structures (e.g., Travel Agency Business Handling Fee Tables ("Ryoko Gyomu Toriatsukai Ryokin-Hyo")). The proposed fees shall reflect the Contractor's independent pricing judgement and may be adjusted, as appropriate, to account for the unique administrative and operational requirements associated with supporting U.S. Government missions.

1.4.4.1. Expedited Service Fee.

If the Government's service request is not placed as specified in paragraph 1.4.2.1. and becomes an expedited service request, the Contractor may charge the amount set for each bus, as specified in ELIN X04A, for the number of buses that can be arranged. All expedited service requests must be documented through emails or Order Forms. In the absence of proper documentation, the Expedited Service Fees will not be eligible for payment.

1.4.4.2. Change Fee.

If the confirmed service request is changed within two (2) weeks of the scheduled date, a fee under ELIN X04B shall be charged per bus unless the change involves a pick-up time adjustment of less than 60 minutes or occurs within the same U.S. Government facility. The changes primarily pertain to bus schedules and routes; however, this fee may also be applicable to other changes as determined appropriate by the CO. All change requests must be documented through emails or appropriate Order Forms. In the absence of proper documentation, the changes shall not be eligible for payment. If multiple changes are made under the same service request and the Contractor accommodates each change, the Contractor may charge this fee for each such change.

1.4.5. CANCELLATION.

The four (4) categories of cancellation are set forth in paragraph 1.4.5.1. For the purpose of determining the applicable cancellation category, the date on which the cancellation notice is submitted shall be deemed the effective date of cancellation. In the event a service is scheduled and the requirement is canceled, the Government shall pay a cancellation charge IAW the applicable ELINs X05A through X05D set forth in the Exhibit. Such cancellation charge shall be payable to the Contractor regardless of whether the bus company imposes a cancellation charge. The calculation method shall be as follows:

- **When the bus company is not yet selected:** This provision applies when a scheduled service is cancelled before a bus company is selected and a Transportation Acceptance Agreement is issued. The amount shall be calculated as the sum of the estimated number of hours multiplied by the applicable regional hourly rate, and the estimated number of kilometers multiplied by the applicable regional distance-based fare. The resulting total shall be multiplied

by two (2) to account for the return trip from the Off-boarding point (Point B) to the Boarding point (Point A). Since a Transportation Acceptance Agreement has not been executed, the calculation shall be limited to the base fares described above and shall exclude any other charges that would otherwise be specified in such an agreement.

- **When the bus company is selected:** This provision applies when a scheduled service is cancelled after a bus company selected and a Transportation Acceptance Agreement is available. The calculation shall be based on the route between Point A, Point B, and the motor pool. The bus company name shall be specified in the remarks section of the Order Completion Report. Where expenses in paragraph 1.4.6 are included, such expenses shall be due and payable in full, separate and apart from any cancellation fees. When the bus company has been selected, the cancellation fee shall, to the extent possible, be paid to the bus company. If the Transportation Acceptance Agreement is unavailable, it shall be deemed that the bus company has not been selected.

1.4.5.1. Cancellation Categories.

If the service is cancelled fifteen (15) Calendar Days or more prior to the performance date, no cancellation charge shall apply.

(a) 14–8 Calendar Days Prior: If the service is cancelled between fourteen (14) Calendar Days and eight (8) Calendar Days (inclusive) prior to the performance date, the cancellation charge per bus shall be calculated by applying the specified percentage (%) (ELIN X05A) proposed by the Contractor in its offer to the requested bus price for the cancelled service.

(b) 7–2 Calendar Days Prior: If the service is cancelled between seven (7) Calendar Days and two (2) Calendar Days (inclusive) prior to the performance date, the cancellation charge per bus shall be calculated by applying the specified percentage (%) (ELIN X05B) proposed by the Contractor in its offer to the requested bus price for the cancelled service.

(c) 1 Calendar Day Before Service Date: If the service is cancelled one (1) Calendar Day before the scheduled performance date from 00:00 hours, the cancellation charge per bus shall be calculated by applying the specified percentage (%) (ELIN X05C) proposed by the Contractor in its offer to the requested bus price for the cancelled service.

(d) On the Service Date: If the service is cancelled on the performance date from 00:00 hours onward, the cancellation charge per bus shall be calculated by applying the specified percentage (%) (ELIN X05D) proposed by the Contractor in its offer to the requested bus price for the cancelled service.

1.4.6. EXPENSE.

1.4.6.1. Overnight Service Charge.

The Contractor shall be entitled to the Overnight Service Charge at the rate specified in ELIN X06A per driver, when and if requested by the Contractor and approved by the OOs. The rate includes, but is not limited to, lodging for driver(s) and its associated costs, when the service is rendered exceeding the daily working hours for driver(s) as set by applicable chartered bus regulation and the driver(s) is required to take a break/rest.

1.4.6.2. Parking Lot Charge.

When a bus is required to remain in a paid parking facility, the Contractor shall obtain prior approval from the OO/CO before incurring any parking charges. The Contractor shall be entitled to reimbursement for actual parking cost IAW ELIN X06B, applied on a per-occurrence, per-bus basis. Parking charges of 5,000 yen or less may be claimed without submission of receipts, provided such charges are reasonable and consistent with actual costs incurred. Parking charges exceeding 5,000 yen require submission of a copy of the original receipt. The Government reserves the right to request supporting documentation at any time.

1.4.6.3. Toll Charges.

The Contractor shall be entitled to reimbursement for the actual cost of tolls incurred, in the amount set forth in ELIN X06C, when and if requested by the Contractor and approved by the OO/CO. When toll roads are used, the Contractor may calculate the toll fee based on the total distance traveled. If the total toll fee falls within the applicable fee range for the corresponding distance category, the Contractor may invoice the actual amount paid without submission of receipts. However, the Contractor shall retain all supporting documentation (such as original receipts or ETC logs) for these charges IAW standard contract retention requirements. If the toll fee does not fall within the applicable range, the Contractor shall notify the OO/CO and may invoice the amount upon receiving approval, which requires the submission of the original receipt or a copy to support the claim. In all cases, the Contractor shall provide the original receipt or a copy thereof upon request by the Government. For distances exceeding 1101 km, toll fees may be calculated by combining the applicable categories listed below.

Distance Category	Estimated Maximum Toll Fee for Large Buses
Up to 100 km	¥10,000
101–300 km	¥20,000
301–500 km	¥35,000
501–800 km	¥42,000
801–1100 km	¥55,000
1101 km and over	¥70,000

1.4.6.4. Other Actual Costs.

This paragraph covers the reimbursement of two (2) types of Other Actual Costs as defined below. However, this does not preclude the reimbursement of Other Actual Costs, provided they are expressly approved by the CO. These reimbursements will be processed under ELIN X06D.

(a) Pre-Approved Incidental Expenses: The Contractor is entitled to reimbursement for the actual cost of pre-approved incidental expenses incurred at the direction of the CO. These expenses are separate from the base bus transportation rate and include items such as bus guide fee or ferry fees. Reimbursement for those costs requires the submission of an original receipt or a copy thereof.

(b) Substitute Bus Costs: When large-sized buses are unavailable and medium-sized or small-sized buses are used as substitutes, the actual cost for the substitute bus may be treated as Other Actual Costs. This requires a quotation to be approved in advance by the OO/CO. Reimbursement shall be strictly limited to the actual cost incurred; no profit, handling fees, or administrative charges shall be allowed. Additionally, the total amount reimbursable for the substitute bus shall not exceed the amount that would have been calculated for large-sized buses performing the same route under its applicable ELIN.

1.4.7. HUMANITARIAN ASSISTANCE AND DISASTER RELIEF (HADR).

The services under this contract may be used to support operations conducted in an emergency environment, including humanitarian assistance and disaster relief. Any such services will be requested through TOs IAW the ordering procedures of this contract and are subject to contractor availability and operational conditions.

1.5. GENERAL INFORMATION.

1.5.1. QUALITY ASSURANCE.

The Government will evaluate the Contractor's performance through the receipts of complaints IAW the Quality Assurance Surveillance Plan (QASP).

1.5.1.1. Contract Quality Assurance.

The Contractor shall maintain an adequate inspection system and perform such inspections to ensure that the work performed under the contract conforms to contract requirements. The Contractor shall maintain acceptance records of Transportation Acceptance Agreement and complete inspection records, and make them available to the Government.

1.5.2. GOVERNMENT REMEDIES.

The CO will follow Revolutionary Federal Acquisition Regulation Overhaul (RFO) 52.212-4, Contract Terms and Conditions – Commercial Products and Commercial Services, for contractor's failure to perform satisfactory services or failure to correct non-conforming services.

1.5.3. OBTAINING EXEMPTION FROM JAPANESE TAXES AND SUBMISSION OF VEHICLE LISTING FOR TAX EXEMPTION CERTIFICATE.

1.5.3.1. Tax Exemption Basis.

The basis whereby U.S. Armed Forces obtain exemption from Japanese taxes are prescribed in paragraph 3, Article XII of the Status of Forces Agreement under Article VI of the Treaty of Mutual Cooperation and Security between the U.S. and Japan.

1.5.3.2. Required Submissions.

Prior to performing the services, the Contractor shall submit fuel consumption ratios of buses to the CO, the 374th Contracting Squadron (374 CONS), Yokota Air Base, Fussa-shi, Tokyo for verification, and an accurate listing of all buses to be used under this contract with the copies of vehicle inspection certificates, and location(s)/distances between the Contractor's Bus Pool(s) and USFJ installations, to the Tax Exemption Certifying Officer for issuance of fuel tax exemption certificate under this Contract. The revenue distance to be certified will be verified by the Government upon Contractor's submission of requests for the Fuel Tax Exemption. The Tax Exemption Certifying Officer will review the accuracy of the Contractor's figures on fuel consumption prior to issuance of appropriate tax exemption certificate.

1.5.3.3. Certifying Officer.

Mailing address of the Tax Exemption Certifying Officer is 197-0001 Tokyo, Fussa- shi, Yokota Air Base, Bldg. 620, 374 CONS/PKS. Emailing to the POC is acceptable.

1.5.3.4. Deadhead Distance Certification.

The Contractor shall also submit a certification statement to the Tax Exemption Certifying Officer for claiming deadhead distances for each requested service during performance period. The wording for the certification statement will be provided to the Contractor by the Tax Exemption Certifying Officer.

1.5.4. INSTALLATION BASE PASSES.

For access to U.S. Installations, the Government will issue all required Gate Passes/Vehicle Passes to Contractor personnel at no cost to the Contractor. To obtain passes, the Contractor is required to submit documents IAW each installation instruction. The Contractor shall be responsible for all passes issued to his/her own or his/her subcontractor's employees under this contract. The Contractor shall return all applicable passes upon termination of employment or completion of this contract to the Installation Pass Office.

1.5.4.1. Gate Passes.

In order to obtain Gate Passes, the Contractor may be required to (i) submit certificates of residence, abstracts of family registers and an ID photo, in addition to application forms which could vary depending on each installation, and (ii) make appointments at the Installation Pass Offices to take ID photos and pick up issued passes. The Contractor is responsible for the expenses and costs that they would incur in order to obtain Gate Passes.

1.5.4.1.1. Long-Term Gate Passes.

Long-Term gate passes for access to Camp Zama, Sagamiara Family Housing Area, Sagami General Depot, Yokohama North Dock, shall be obtained in advance IAW the Camp Zama procedures. One pass authorizes access to all four installations. The Contractor shall select multiple bus companies (typically 5 bus companies) capable of supporting requirements in the Camp Zama area. The Government will issue Long-Term Gate Passes to such companies. The Contractor is responsible for the expenses and costs that they would incur in order to obtain these passes.

1.5.4.2. Vehicle Passes.

In order to obtain Vehicle Passes, the Contractor shall submit the proof of valid liability insurance that must cover the automobile liability insurance in the types and minimum amounts of (i) Bodily Injury - ¥30,000,000 per person per occurrence, in addition to the Japanese Compulsory Insurance (JCI), and (ii) Property Damage - ¥3,000,000 per occurrence.

1.5.4.3. Base Escort.

In order to enter the U.S. DOD military base & installations without gate passes, the GR/OO at each installation needs to sign in the Contractor and its vehicles at the gates. The Contractor is required to complete the necessary advance procedures by submitting application forms which could vary depending on each installation. On the day of base entry, the Contractor may be required to possess passports, My Number Card, certificates of residence, abstracts of family registers and an ID photo. The Contractor shall make coordination by following the OOs and the Installation Pass Offices prior to the service dates.

1.5.5. PERSONNEL (ROLE AND RESPONSIBILITIES).

1.5.5.1. Government Personnel.

1.5.5.1.1. Contracting Officer.

The CO is the only individual with the legal authority to issue TOs under the contract. Any changes to the terms and conditions of a TO may only be made by the CO. In addition, only the CO at 374 CONS is authorized to modify the terms of the base contract. OO and COR do not possess contractual authority unless they are formally appointed in writing by the CO. All service requests and acceptance shall be conducted under a properly issued TO. Passengers and other personnel are not authorized to independently alter bus arrangements.

1.5.5.1.2. Ordering Officer.

An OO is formally appointed in writing by the CO. Under a Blanket TO or an Undefined TO, which is used when the requirement contains uncertain elements, the OO is responsible for finalizing service request details and placing service requests directly with the Contractor. All service requests shall be issued using the designated Order Form. The OO serves as the primary point of contact between the Contractor and the requesting activity, ensuring accurate and timely communication of service requirements. The Contractor is only authorized to accept service requests issued by a duly appointed OO. The OO may place service requests only within the scope of the TO issued by the CO, and their authority is limited to coordinating and finalizing schedule details.

1.5.5.1.3. Contracting Officer Representative.

A COR will be designated for this contract in writing by the CO. The COR is responsible for monitoring the Contractor's performance and ensuring that all services are delivered IAW the terms and conditions of the contract. Prior to designation, the COR must complete all required training necessary to perform their oversight duties. The COR is authorized to accept services on behalf of the Government, as delegated by the CO.

1.5.5.1.4. Government Representative.

The GR serves as the on-site official responsible for supporting operational activities during service execution. The GR escorts the Contractor onto the installation when required,

conducts passenger accountability, and acts as the initial point of contact in the event of any accidents or damage involving the bus. The GR's authority is limited to on-site coordination and oversight. The GR is not authorized to modify service requests, direct changes that affect cost, adjust schedules, or alter any contractual terms. Only the CO has the authority to issue or modify TO. A duly appointed OO may finalize schedule within a TO.

1.5.5.2. Contract Manager (CM).

The Contractor shall provide a CM who shall be responsible for the performance of the work required under this contract. The name of this individual and an alternate(s) who shall act as a representative for the Contractor when the CM is absent shall be designated in writing to the CO by submitting a list of these designated personnel, including their contact information (e.g., telephone numbers and email addresses). The Contractor shall ensure this list is kept current at all times and any changes are reported to the CO immediately. The CM and alternate shall have full authority to act for the Contractor on all contract matters relating to the daily operations of the work performed under this contract. The CM and alternate shall be individuals who are capable of conversing in and comprehending English. The CM or alternate is responsible for the performance of the contract. The CM shall immediately report any problems that are encountered in any work locations to the CO.

1.5.5.3. Removal of Contractor's Employees.

The Contractor shall utilize only experienced, responsible and capable employees in the performance of this contract. The CO may require that the Contractor remove from the Government job any of his/her employees who endanger persons or property, or whose continued employment under this contract is inconsistent with the interests of military security.

1.5.5.4. Other Country Nationals (OCN).

The Security Forces on each base control entry to the base. Under certain circumstances, the OCN might be denied entry. It is the Contractor's responsibility to coordinate with Security Forces at each base when there is a question about particular circumstances.

1.5.5.5. Employment Restrictions.

The Contractor shall not employ any person who is an employee of the U.S. Government and/or Master Labor Contract employees if employing that person would create a conflict of interest or become in violation of the Procurement Integrity Act (See RFO 3.104.). Additionally, the Contractor shall not employ any person who is an employee of the Department of the Air Force, either military or civilian.

1.5.6. SUBCONTRACTING.

The subcontractors shall meet the standards required by this contract to perform the service. The Contractor is responsible for the performance of the subcontractors.

1.5.7. U.S. LEGAL HOLIDAYS.

The U.S. legal holidays are specified below. When a holiday falls on a Saturday, it may be observed on the preceding Friday; if it falls on a Sunday, it may be observed on the following Monday.

DATE

HOLIDAY

1st January
3rd Monday in January
3rd Monday in February
Last Monday in May
19th June
4th July
1st Monday in September
2nd Monday in October

New Year's Day
Martin Luther King's Day
President's Day
Memorial Day
Juneteenth Day
Independence Day
Labor Day
Columbus Day

11th November
4th Thursday in November
25th December

Veteran's Day
Thanksgiving Day
Christmas Day

1.5.8. REPORTS OF DAMAGES, DESTRUCTION, INJURY, OR DEATH.

1.5.8.1. Reporting Requirements.

The Contractor shall report all incidents of damage or destruction to property, or personal injury or death to any person, arising out of and during the performance of this contract. For the purposes of this clause, the term "property" includes equipment, freight, or property of any type, whether Government owned or not. The term "Contractor" includes the Contractor, its agents or employees.

1.5.8.2. Reporting Procedures.

The Contractor shall submit these reports to the CO through the OO as follows:

- (a) A preliminary report shall be made as soon as practicable after the time the incident occurs. Report may be either verbal or phone call or email.
- (b) A complete written report (English is preferable) shall be submitted within 96 hours after occurrence of the incident.

1.5.8.3. Compensation for Damages.

If passengers cause damage to the vehicle during the scheduled movement, claims arising from such damage shall be considered contractual claims subject to the Disputes clause. This provision strictly excludes normal wear and tear, routine cleaning, and pre-existing defects. To be considered a valid claim under this clause, the bus company shall report the damage to the Contractor within 24 hours of the post-operation inspection. This report must include:

- (a) Photographic evidence clearly showing: A close-up image of the damage, a wider-angle image indicating the location within the vehicle, and the date and time the images were taken.
- (b) A driver's statement describing when the damage was discovered and why it is believed to have been caused by the passengers during service.
- (c) A formal repair or cleaning estimate from an independent third-party facility.

The Contractor acknowledges that its bus companies are responsible for tracking pre-existing damage to their own vehicles. Failure by the bus company to report damage within the 24-hour period will create a conclusive presumption that the damage either pre-existed the service or did not occur during the service, and the Government shall not be held liable. The Contractor shall promptly submit the report, including details such as TO number, scheduling number, project title, date and time, route, and other relevant information, to the OO to determine the liability of the requesting unit. The CO shall verify the reasonableness of the compensation request and ensure it aligns with the contract and TO terms. The CO shall also oversee the process to ensure proper documentation is submitted and that payment is processed. The compensation shall be covered by the remaining balance of the issued TO. If there is no remaining balance in the TO, the requesting unit will provide additional funding to cover the damage. Such compensation shall be made IAW PWS 1.4.6.4. and paid under ELIN X06D upon the CO's verification that the amount requested directly corresponds to the actual, verifiable out-of-pocket costs documented in the third-party repair invoice and estimate, submitted as part of the damage report. No profit, administrative fees, overhead, or transaction fee shall be allowed on such compensation.

1.5.9. LIABILITIES.

The Government shall in no event be liable or responsible for damage or injury to any person or property occasioned through the use, maintenance, or operation of any vehicle or other equipment by, or the action of, the Contractor or the Contractor's employees and agents in performing under this contract, and the Government shall be indemnified and saved harmless against claims for damage or injury in such cases.

2. SERVICES SUMMARY.

Performance Objective	PWS Paragraph	Performance Threshold	Method of Assessment
SS1: Transporting Government personnel as set forth in the Exhibit IAW the PWS and applicable GOJ laws.	1.	Customer complaints shall not exceed 3 per month.	Customer complaint.
SS2: Compliance with the Government schedule.	1.4.2. and 1.4.2.1.	Customer complaints shall not exceed 3 per month.	Customer complaint.
SS3: Type and Capacity of Buses and Passenger Safety	1.2. and 1.3.	Customer complaints shall not exceed 3 per month.	Customer complaint.
SS4: Change of Schedules	1.4.2.5.	Customer complaints shall not exceed 3 per month.	Customer complaint.

3. GOVERNMENT FURNISHED PROPERTY AND SERVICES.

None.